

AMERICAN FORK CITY COUNCIL
JUNE 16, 2020
SPECIAL SESSION MINUTES

This meeting was held electronically

Members Present:

Bradley J. Frost	Mayor
Kevin Barnes	Council Member
Staci Carroll	Council Member
Barbara Christiansen	Council Member
Rob Shelton	Council Member
Clark Taylor	Council Member

Staff Present:

David Bunker	City Administrator
Wendelin Knobloch	Associate Planner
Terilyn Lurker	City Recorder
Anna Montoya	Finance Officer
Aaron Brems	Fire Chief
George Schade	IT Director
Cherylyn Egner	Legal Counsel
Adam Olsen	Senior Planner
Darren Falslev	Police Chief
Scott Sensanbaugher	Public Works Director

WORK SESSION

The purpose of City Work Sessions is to prepare the City Council for upcoming agenda items on future City Council Meetings. The Work Session is not an action item meeting. No one attending the meeting should rely on any discussion or any perceived consensus as action or authorization. These come only from the City Council Meeting.

The American Fork City Council met electronically in a special session on Tuesday, June 16, 2020, commencing at 4:00 p.m.

Mayor Frost welcomed everyone to the meeting.

1. **Reading of public comments.**

There were three comments submitted before 3:30 pm today. Mayor Frost read those three comments into the record, as follows:

Jessica Dalton

Mayor Frost,

I am a born and raised citizen of American Fork as is my husband. We both love this city so much that we knew it was the place we wanted to raise our children and so when it came time to buy, we were thrilled to find a place in what we have always considered our home town.

I have always had a good experience with our police force, but my experience is as a white member of our city with privilege. I believe that we can always do more to make American Fork better, especially as our city grows and the demographic of our city changes.

While I was pleased to read the response from Chief Darren Falslev, it felt more like a “these are all the great things we are doing” rather than a letter explaining the things they are doing but how they will improve upon them.

First the mention of “all lives matter”, while I believe the sentiment to be sincere by Chief Falslev, this is a phrase that is used to dismiss and silence the struggles and prejudices that our black brothers and sisters as well as other marginalized groups go through. I want to see this phrase, as well as other phrases that are used to dismiss and undermine the excess force against black people, removed from public documents. Some other phrases include “color blind” and “blue lives matter”.

I am glad to see that all officers receive CIT training, however, it’s concerning that not all of them receive the training from the Arbinger Institute Outward Mindset curriculum. Why is it that we are not training all of our officers with this curriculum especially when it states that the department values each individual? I would like to see this as an improvement by our police force to have each officer receive this training.

Another thing that can be vastly improved upon is to have the body cams worn always, not just regularly. This not only protects our police force but our community and residents as well.

And along with that, when investigations are needed, we need to have them done by an independent civilian review board and not by an internal investigation board. This board would be democratically elected, not appointed by local Mayors or Governors as well as it must not include current police officers or relatives of police officers. By voting for the members of these boards, it with accountability and transparency which we need to protect the people.

I believe that the by doing these things, we can make American Fork better and a more welcome place as it continues to grow. I want to continue to say that American Fork is a great place to live as we move into the future.

Jessica Dalton

Claudia Rasmussen

Hello city council,

Here is what I expect from the American Fork Police Department.

No use of phrases in public documents that have been used to undermine the excess use of force by police against black people. Some of these are All Lives Matter, Color Blind, and Thin Blue Lines Matter.

Every officer not just those with the "Advanced Officer status" should be trained in the Arbinger Institute Outward Mindset that emphasizes the intrinsic value of every individual.

Our police department needs to be investigated by democratically elected, independent civilian review boards; which have the power to investigate police, and also bring charges against police.

These boards must have subpoena power. These boards must not include current police officers or relatives of police officers. The people on these boards must not be appointed by local Mayors, or Governors. We want the ability to vote for the members of these boards and have them give us the accountability and transparency which is needed to protect the people.

Body-worn cameras need to be worn not on a regular basis but AT ALL TIMES.

We need these changes now!

Lex Scott, Founder of Black Lives Matter Utah

A democracy allows for live comments. I suggest that in the future you allow the public comment. It is imperative that your staff attend implicit bias training. It is important that we know how you plan to address and deal with racism in policing. It is imperative that we know your stance on police reform. This should happen soon so that we know who to re-elect and who to canvass against. Thank you

2. Review and action on the authorization to issue a Notice of Acceptance for the Mount Timpanogos View Subdivision construction of public improvements located at 1500 North Alpine Highway.

Mr. Scott Sensanbaugher, Public Works Director, stated this item pertained to the acceptance of the subdivision's infrastructure. The developer had done everything that was asked of them by staff. He noted that a performance-in-lieu agreement was in place for this project, thereby allowing the developer to now file their plat. Staff recommended approval of this item.

Council Member Barnes mentioned that Alpine Highway was actually 100 East, and he suggested that this clarification be added in parentheses.

Council Member Shelton moved to accept the improvements and authorize the Mayor to execute the Notice of Acceptance for the Mount Timpanogos View Subdivision public improvements located at 1500 North Alpine Highway, also known as 100 East, to authorize the issuance of documents and Commence the Durability Testing Period by retaining ten percent (10%) of the ICG, to find that the project improvements are in a condition meeting City ordinances, standards, and specifications and are in conformance with the approved project construction plans. Council Member Taylor seconded the motion. Voting was as follows:

RESULT:	APPROVED [UNANIMOUS]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Barnes, Carroll, Christiansen, Shelton, Taylor

3. Review and Action on a Resolution Setting the Certified Tax Rate for Fiscal Year Ending June 30, 2021.

Council Member Taylor moved to approve Resolution No. 2020-06-12R accepting the Utah County Auditor's calculated certified tax rate for General Operations and Tort Liability and setting budgeted tax revenue for Interest and Sinking Fund/Bond at \$760,393. Council Member Christiansen seconded the motion.

Council Member Shelton asked if this indicated whether or not the City was doing a truth in taxation, or if that process would come at a later time. Anna Montoya, Finance Director, explained that truth in taxation was the process by which the City would raise property taxes, which they were not doing at this time. She further explained that when the City did decide to raise taxes, a public hearing would take place. The City would need to determine and adopt the new tax rate in lieu of the certified tax rate.

Council Member Barnes asked if a truth in taxation would need to be completed prior to adopting the current certified tax rate. Anna Montoya, Finance Director, stated that it would need to be done within 10 days of June 22.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	APPROVED [4 TO 0]
MOVER:	Clark Taylor, Council Member
SECONDER:	Barbara Christiansen, Council Member
AYES:	Staci Carroll, Barbara Christiansen, Rob Shelton, Clark Taylor
RECUSED:	Kevin Barnes

4. Review and action on a resolution executing an interlocal agreement between American Fork City and Utah County for disbursement from the Coronavirus Relief fund.

This item was removed from the agenda.

Mayor Frost explained they had money available to the City for COVID-19 related expenses, in the amount of \$2.3 million. They would have to follow treasury guidelines to be able to receive those funds. Throughout yesterday and today, cities were uncomfortable with some of the language associated with the interlocal agreement. Therefore, changes were being requested. He explained that 17 mayors came together to petition with the County on this matter. Based on the population, the mayors felt that this was money that should be distributed. Any unused funds would be given back towards purposes within the County related to economic development. Mayor Frost explained that this item had been in the works for about three to four weeks coming, and they were anxious to get this money into the City's coffers. This item would return to the Council shortly for additional review and a decision.

5. Review and action on a termination agreement with Gold Cross Services, Inc.

David Bunker, City Administrator, explained that they been in communications with Gold Cross Services. American Fork had had a contract with them since 2012, with a renewal in March 2015. Due to the City's licensing change, and the fact that the previous contract was never fully executed, it was agreed between the two entities to terminate the March 2015 contract effective immediately. He further noted that they would also forgo the 90-day termination process. The City could always enter into a new contract with Gold Cross Services in the future. The City would still use Gold Cross for the billing and paramedic services.

Council Member Shelton moved to approve the termination agreement with Gold Cross Services Inc. Council Member Taylor seconded the motion.

Council Member Carroll asked if they would therefore no longer occupy City offices, to which Mr. Bunker said that was correct. Council Member Carroll asked if the City needed additional ambulances. Mr. Bunker explained that American Fork City did have mutual aid agreements with surrounding agencies. Chief Brems noted that this was all correct.

Mayor Frost called for a vote on the motion. Voting was as follows:

RESULT:	APPROVED [4 TO 0]
MOVER:	Rob Shelton, Council Member
SECONDER:	Clark Taylor, Council Member
AYES:	Kevin Barnes, Barbara Christiansen, Rob Shelton, Clark Taylor
RECUSED:	Staci Carroll

6. Adjournment.

Council Member Taylor moved to adjourn the meeting. Council Member Shelton seconded the motion. All were in favor.

The meeting adjourned at 4:22 p.m.



Terilyn Lurker, City Recorder